

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Henry Cordes	Team: Team # 3	CCRB Case #: 200711360	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/05/2007 1:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/5/2009	Precinct: 67		
Date/Time CV Reported Tue, 08/07/2007 3:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/07/2007 3:11 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Nicole Graham	03000	940210	067 PCT
2. POF Yulanda Young	14777	939726	067 PCT
3. POM Erik Worobey	10614	932229	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Yulanda Young	Abuse: PO Yulanda Young stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POF Nicole Graham	Abuse: PO Nicole Graham stopped § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Erik Worobey	Abuse: PO Erik Worobey stopped § 87(2)(b) and § 87(2)(b)	C . Exonerated
D . POF Yulanda Young	Abuse: PO Yulanda Young threatened to issue summonses to § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated

Synopsis

The CCRB received this complaint from § 87(2)(b) on August 7, 2007, via telephone. § 87(2)(b) stated that at approximately 1:00 am on August 5, 2007, she and her sister, § 87(2)(b) were sitting in the lobby of § 87(2)(b) in Brooklyn. The women heard knocking on the front door of the building, which they initially ignored. § 87(2)(b) eventually opened the door and officers, identified as PO Yulanda Young, PO Nicole Graham, and PO Erik Worobey, all of the 67th Precinct, entered. The officers asked the women why they had not opened the door for them and stated that they had prevented them from apprehending an unknown male who had been drinking alcohol. The officers asked the women for their IDs, which they provided (allegations A, B, and C). PO Young told the women that she would issue them summonses (allegation D). The officers ran the women's IDs and found that § 87(2)(b) had an open warrant, so they arrested her.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) black female who was § 87(2)(b) on the date of the incident. She provided a statement at the CCRB on August 23, 2007 (Enc. 4a-c).

At approximately 12:00 am on August 5, 2007, § 87(2)(b) was attending a birthday party in a basement apartment on § 87(2)(b) in Brooklyn. There was an altercation between § 87(2)(b)'s sister, § 87(2)(b) § 87(2)(b) and an unidentified male. The male then headed in the direction of § 87(2)(b) where § 87(2)(b) lives with her other sister, § 87(2)(b). § 87(2)(b) called 911 and told the operator to have the police respond to § 87(2)(b). § 87(2)(b) did not have any injuries. § 87(2)(b) and § 87(2)(b) went to § 87(2)(b), but the police never arrived. The 911 operator called § 87(2)(b) back and asked her for her location, saying that the officers had responded but could not find her. § 87(2)(b) gave the 911 operator the address again. § 87(2)(b) became upset so § 87(2)(b) consoled her in the first-floor lobby of the building, near the mailboxes. The building is a four-story apartment building with three apartments on each floor. A male entered the building and went upstairs. § 87(2)(b) heard knocking at the front door, but did not answer the door because she did not know who was there. The knocking continued and grew louder, at which point § 87(2)(b) opened the door. § 87(2)(b) trailed behind her sister and sat on a ledge near the front door. Four officers entered the building and started questioning § 87(2)(b) and § 87(2)(b). PO Young was a black female with hair extensions. PO Graham was a black female. § 87(2)(b) identified both officers by reading their name tags. PO #1 was a tall white male with blue eyes, identified through investigation as PO Worobey. PO #2 was an overweight balding white male who was unidentified.

The officers immediately got in the women's faces and accused them of obstructing justice and preventing them from arresting the male who had just entered the building. The officers said that the male who entered the building had a beer bottle. The women said they did not know anything about the male. PO #2 asked § 87(2)(b) for her ID and she provided it. PO Worobey said, "You people are good for nothing." § 87(2)(b) took this to mean that black people are good for nothing. PO Young said that she would issue summonses to the women. PO Young and PO Worobey had § 87(2)(b) cornered. § 87(2)(b) thought that the officers were more focused on § 87(2)(b) because her

demeanor was slightly more aggressive and she was talking back to the officers. The officers ran the licenses and found that § 87(2)(b) had an open warrant and arrested her. However, § 87(2)(b) was also charged § 87(2)(b), despite the fact that she has lived in the building for five months with § 87(2)(b) § 87(2)(b). The officers verified § 87(2)(b)'s address by calling § 87(2)(b) and speaking to her. § 87(2)(b) was kept at the station house for four days, which is what § 87(2)(b) was most upset about.

Results of Investigation

Victims Not Interviewed

§ 87(2)(b) was contacted by the CCRB and scheduled two appointments to give a statement at the CCRB. However, she missed both appointments § 87(2)(g)

Results of Canvass and Additional Investigative Steps

A canvass of § 87(2)(b) was conducted on March 25, 2008, which determined that only someone in the small vestibule area between the first entrance door and the second door would be visible from outside the building because the second door leading to the hallway of the building has only a small window in it. The building's mailboxes are located in the rear of the building around a corner, approximately 40 feet from the front door and are not visible from outside the building. There is nowhere to sit in the small vestibule area. The building had no "No trespassing/loitering" signs posted and no visible indication that it participated in the Trespass Affidavit Program (Enc. 5b). The superintendent, "§ 87(2)(b)" who lives on the § 87(2)(b), had no knowledge of the incident.

PO Kema Santos, who oversees the 67th Precinct trespass affidavit program, stated that there is no record of § 87(2)(b) in Brooklyn ever being part of the trespass affidavit program (Enc. 11e).

Identification of Officers Interviewed

§ 87(2)(b) identified PO Nicole Graham and PO Yulanda Young as two of the officers involved in the incident by reading the names on their shields. PO Young and PO Graham identified PO Worobey as working with them at the time of the incident during their CCRB interviews.

PO Yulanda Young's CCRB Statements

PO Young is a § 87(2)(b) black female. She provided a statement at the CCRB on December 6, 2007 (Enc. 6a-d) and on June 9, 2008 (Enc. 6e-f).

PO Young worked from 5:30 pm on August 4, 2007, until 2:05 am on August 5, 2007. Her assignment was spike overtime. She worked with PO Worobey and was in uniform. She was assigned to an unmarked black Chevy Impala. She has no memo book entries regarding this incident.

At approximately 1:00 am on August 5, 2007, PO Young was driving with several other marked RMPs to disperse crowds within the confines of the 67th Precinct. There was a large crowd of approximately thirty people outside § 87(2)(b) which is a multi-story apartment building that participates in the Trespass Affidavit Program. PO Young did not remember seeing anyone in possession of alcohol outside the building. A light-skinned male saw the officers and immediately ran into the building. PO Young did not know if the door was unlocked or if someone inside opened the door for him, but the male did not have to use keys to get inside. PO Young and PO Worobey got out of their vehicle and chased the male because he ran away. As PO Young and PO Worobey reached the front door of the building, a female, later identified as § 87(2)(b)

pushed the door closed, causing it to lock. The entrance to the building consists of double glass doors with metal bars in front of them. It is possible to see inside the building through these doors. PO Young heard the male yelling from upstairs, "Don't open the door until I get into the house."

§ 87(2)(b) stood by the door and was repeatedly yelling back up to the male, "Are you in?" Another female, later identified by the officers as § 87(2)(b) was sitting on a radiator in the hallway a few feet away. The officers told § 87(2)(b) to open the door several times but she refused. The male then yelled, "I'm in the house, you can open the door now." § 87(2)(b) then opened the door and sat down on the radiator with § 87(2)(b)

The officers entered the building and started questioning § 87(2)(b) as to why she had not opened the door. § 87(2)(b) said that she did not have to open the door for the officers because the male was a family member. There was no conversation with § 87(2)(b) PO Young could not remember if the officers questioned the females about the male who had run inside the building. The officers asked the women if they lived in the building and they said that they did not. The officers asked § 87(2)(b) if she lived in the building because she had prevented them from entering the building and asked § 87(2)(b) if she lived in the building because she was with § 87(2)(b) PO Young did not remember if the women mentioned any relatives who lived in the building. Both women were upset and were giving the officers attitude. PO Young could not elaborate on this other than saying that she based this assessment on their body language. No officer said, "You people are good for nothing." The officers then asked both women for their IDs, which they provided, to verify their identities. An officer ran the IDs and found that § 87(2)(b) had an open warrant. The officers did not mention to anyone that they could receive a summons, though the women could have been issued trespassing summonses. There was no further investigation of the male who ran upstairs because they did not know where he had gone. PO Young did not know if a 250 was completed for § 87(2)(b) but she did not complete one.

PO Nicole Graham

PO Graham completed § 87(2)(b)'s arrest report (Enc. 7a-b) in which she stated that § 87(2)(b) remained in § 87(2)(b) in Brooklyn without proper authority of the custodian. Further investigation revealed that she had an open warrant.

PO Graham's CCRB Statement

PO Graham is a § 87(2)(b) black female. She provided a statement at the CCRB on February 28, 2008 (Enc. 7c-d).

PO Graham did not remember what hours she worked on August 5, 2007. Her assignment was spike overtime. She worked with PO Worobey and a female officer. She was in uniform and was assigned to a marked RMP. She no longer has her memo book.

At approximately 1:00 am on August 5, 2007, PO Graham was in her vehicle and observed a male drinking a bottle of beer outside § 87(2)(b). There were other people standing around outside. PO Graham did not remember who was driving the vehicle. The officers got out of the vehicle, at which point the male immediately ran inside § 87(2)(b) and the door closed behind him. PO Graham did not remember if the building was a public or private building. The building was part of the Trespass Affidavit Program. The officers followed the male and tried to open the door, but it was locked. The door was glass, enabling the officers to see inside the building. § 87(2)(b) and § 87(2)(b) were sitting inside the vestibule of the building, approximately two feet away from the door. PO Graham told the women to open the door, but they just stared at the officers. After asking the females three times to open the door, § 87(2)(b) eventually did, approximately a minute later. PO Graham did not know what

prompted the women to open the door. PO Graham, PO Young, and PO Worobey entered the building. PO Graham did not know if any other officers entered the building. PO Graham did not hear the females speaking to anyone else inside the building. PO Graham did not see where the male had gone. PO Graham asked the women why they did not open the door. One of the females said, "Oh, you wanted to get in?" PO Graham asked § 87(2)(b) if she lived in the building. § 87(2)(b) said that she did not live in the building. PO Graham asked § 87(2)(b) for her ID and one of the other officers asked § 87(2)(b) for her ID and ran both of them for warrants. The officers did not attempt to verify their addresses with anyone else in the building. § 87(2)(b) had a very sarcastic tone throughout the incident. The officers stopped § 87(2)(b) and § 87(2)(b) because they were inside a building that participates in the Trespass Affidavit Program. PO Graham did not say, "You people are good for nothing," and did not remember if anyone else said that. It was discovered that § 87(2)(b) had an open warrant § 87(2)(b). PO Graham placed § 87(2)(b) under arrest. PO Graham did not remember what happened to § 87(2)(b). PO Graham was the only officer who interacted with § 87(2)(b). None of the officers said that they would give the women summonses.

PO Erik Worobey's CCRB Statement

PO Worobey is a § 87(2)(b) white male. He provided a statement at the CCRB on January 8, 2008 (Enc. 8a-e).

PO Worobey worked from 5:30 pm on August 4, 2007, until 3:05 am on August 5, 2007. His assignment was quality of life overtime. He was working with PO Young and PO Graham. He was in uniform and assigned to § 87(2)(b), which is a marked RMP. He has no memo book entries regarding this incident.

At approximately 1:00 am on August 5, 2007, PO Worobey was driving with PO Young and PO Graham and observed a group of five or six males and females outside § 87(2)(b) with open containers of beer. Two officers from the borough Task Force happened to be at the location and dealt with the open container violations. PO Worobey also observed two individuals inside the vestibule of § 87(2)(b). The lobby was well-lit and there was a glass door which the officers could see through. There was another glass door a few feet inside the building, creating a small vestibule area. It is a privately owned building and does not participate in the Trespass Affidavit Program. PO Worobey did not see anyone enter the building prior to entering himself.

PO Worobey and the other officers jointly decided to enter the building to determine whether the females lived in the building and were able to do so because the door was unlocked. The females did not try to prevent the officers from entering, but did attempt to go through the second door, which was locked. The officers were permitted to enter the vestibule and hallways of the building because it is a multiple-dwelling building and the shared areas of the building are not private. The officers asked both women for their addresses and whether they were visiting anyone in the building.

§ 87(2)(b) stated that she was visiting someone and that she lived at § 87(2)(b), approximately two blocks away. § 87(2)(b) did not provide her ID to the officers, but provided her name, address, and date of birth. § 87(2)(b) also stated that she was visiting someone in the building but when pressed, was unable to give the officers that person's name. § 87(2)(b) gave the officers her benefit card, which did not include her address. None of the officers questioned the women about the people drinking outside. PO Worobey ran both women for warrants and discovered that § 87(2)(b) had an open warrant. PO Worobey did not say, "You people are good for nothing," and did not hear any officers say this. PO Worobey spoke to the superintendent of the building, § 87(2)(b) who verified that the women did not live in the building. PO Worobey located § 87(2)(b) by reading a notice in the building vestibule that listed his apartment number. PO Worobey asked § 87(2)(b) if he wanted the women

removed and arrested and he stated that he did. PO Worobey provided § 87(2)(b) with a trespass affidavit and he signed it. The officers handcuffed § 87(2)(b) and removed her to the station house. § 87(2)(b) was not issued any summonses.

NYPD Documents

The **SPRINT report** (Enc. 9a-b) indicates that one individual was arrested at § 87(2)(b) in Brooklyn.

The **67th Precinct command log** (Enc. 9c) indicates that § 87(2)(b)'s physical condition was apparently normal and that she had an open warrant and I-card.

PO Young's CCRB History

PO Young has no substantiated CCRB allegations. She has been a member of the NYPD for three years (Enc. 2a).

PO Graham's CCRB History

PO Graham has no substantiated CCRB allegations. She has been a member of the NYPD for two years (Enc. 2b).

PO Worobey's CCRB History

PO Worobey has no substantiated CCRB allegations. He has been a member of the NYPD for five years (Enc. 2c).

§ 87(2)(b)'s CCRB History

§ 87(2)(b) has filed no prior complaints with the CCRB (Enc. 2d).

Conclusions and Recommendations

Undisputed Facts

It is not disputed that the officers saw § 87(2)(b) and § 87(2)(b) inside the building and entered. It is also not disputed that the officers asked the women for ID and that § 87(2)(b) was arrested when it was discovered that she had an open warrant.

Disputed Facts

§ 87(2)(g)
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§ 87(2)(g)

Assessment of Evidence

§ 87(2)(b) stated that soon after a male entered the building and went upstairs she heard a loud knocking at the door, but was unable to see who was there. § 87(2)(g)

§ 87(2)(b). She stated that

§ 87(2)(b) eventually opened the door, at which point the officers entered. PO Graham and PO Young stated that they chased a male who ran into the building and they attempted to enter the building after him. PO Young stated that § 87(2)(b) held the door closed prior to opening it, whereas PO Graham stated that § 87(2)(b) was sitting near the door and did not respond to the officers' requests that she open the door. PO Worobey stated that the officers

entered because they saw § 87(2)(b) and § 87(2)(b) inside the building and that the door to the building was unlocked. § 87(2)(g)

§ 87(2)(b) stated that PO Young told her that she would issue summonses to her and § 87(2)(b) PO Young denied telling the women that she would issue them summonses. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) stated that an officer, identified through investigation as PO Worobey, said, “You people are good for nothing,” and took this statement to have racial implications.

§ 87(2)(g)

Allegation A: PO Yulanda Young stopped § 87(2)(b) **and** § 87(2)(b)

Allegation B: PO Nicole Graham stopped § 87(2)(b) **and** § 87(2)(b)

Allegation C: PO Eric Worobey stopped § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b) stated that the officers stopped them because they had not opened the front door for them soon enough. § 87(2)(g)

Allegation D: PO Yulanda Young threatened to issue summonses to § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b) stated that PO Young told her and § 87(2)(b) that she would issue them summonses. § 87(2)(g)

Investigator:

Henry Cordes

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: